

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicholas Venduras	Team: Squad #16	CCRB Case #: 202308317	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 08/21/2023 11:49 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/21/2025	Precinct: 121
Date/Time CV Reported Tue, 08/22/2023 3:35 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/31/2023 2:49 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Luis Matos	24155	963143	STD
2. PO Rehan Usmani	14336	943904	121 PCT
3. PO Joseph Difrancesca	30603	973356	121 PCT
4. PO Joseph Dimeo	15459	974066	121 PCT
5. PO Anis Damak	20271	973333	121 PCT
6. PO Michael Compton	03021	950224	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Sarvar Akhtamov	04952	958210	121 PCT
2. PO Jose Alicea	00115	944315	121 PCT
3. PO Daniel Defrancesco	03876	964479	121 PCT
4. PO Edwin Santiago	20758	968118	121 PCT
5. PO Joseph Rizzi	30010	973716	121 PCT
6. PO Matthew Samela	19539	964273	SRG 1
7. SGT Dominic Ciaramella	04112	952590	121 PCT
8. PO Leila Sheridan	28759	971681	121 PCT
9. CPT Luigi Carrubba	00000	925035	122 PCT
10. PO Ryan Vieira	24457	962859	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Joseph Difrancesca	Abuse: Police Officer Joseph Difrancesca entered § 87(2)(b) in Staten Island.	§ 87(2)(b)
B . PO Anis Damak	Abuse: Police Officer Anis Damak entered § 87(2)(b) in Staten Island.	§ 87(2)(b)
C . PO Joseph Difrancesca	Force: Police Officer Joseph Difrancesca used physical force against § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
D . PO Luis Matos	Force: Police Officer Luis Matos used physical force against § 87(2)(b)	
E . PO Joseph Dimeo	Force: Police Officer Joseph Dimeo used physical force against § 87(2)(b)	
F . PO Luis Matos	Force: Police Officer Luis Matos used a non-lethal restraining device on § 87(2)(b)	
G . PO Luis Matos	Abuse: Police Officer Luis Matos threatened § 87(2)(b) with the use of force.	
H . PO Luis Matos	Force: Police Officer Luis Matos used a chokehold against § 87(2)(b)	
I . PO Luis Matos	Force: Police Officer Luis Matos used physical force against § 87(2)(b)	
J . PO Joseph Difrancesca	Force: Police Officer Joseph Difrancesca used physical force against § 87(2)(b)	
K . PO Rehan Usmani	Abuse: Police Officer Rehan Usmani threatened § 87(2)(b) with the use of force.	
L . PO Luis Matos	Force: Police Officer Luis Matos struck § 87(2)(b) with a baton.	
M . PO Rehan Usmani	Force: Police Officer Rehan Usmani struck § 87(2)(b) with a baton.	
N . PO Luis Matos	Force: Police Officer Luis Matos used physical force against § 87(2)(b)	
O . PO Joseph Difrancesca	Force: Police Officer Joseph Difrancesca used physical force against § 87(2)(b)	
P . PO Rehan Usmani	Abuse: Police Officer Rehan Usmani entered § 87(2)(b) in Staten Island.	
Q . PO Michael Compton	Abuse: Police Officer Michael Compton entered § 87(2)(b) in Staten Island.	

Case Summary

On August 22, 2023, Captain Carrubba of the 122nd Precinct reported to IAB that officers used force against § 87(2)(b) and that he was injured while in police custody. The CCRB received IAB log § 87(2)(b) on August 27, 2023.

On August 21, 2023, at approximately 11:49 PM, officers from the 121st Precinct, including Police Officer Joseph Difrancesca, Police Officer Anis Damak, Police Officer Luis Matos, Police Officer Joseph Dimeo, Police Officer Rehan Usmani, and Police Officer Michael Compton responded to § 87(2)(b) in Staten Island stemming from a 911 call regarding an assault. Upon arrival, PO Difrancesca and PO Damak entered § 87(2)(b) to arrest § 87(2)(b) in his bedroom (**Allegations A – B: Abuse of Authority, § 87(2)(g)**

When § 87(2)(b) did not comply with orders to stand up and give officers his hands, PO Difrancesca, PO Matos, and PO Dimeo attempted to pull § 87(2)(b) hands behind his back (**Allegations C – E, Force, § 87(2)(g)**). PO Matos then used PO Usmani's taser on § 87(2)(b) (**Allegation F: Force, § 87(2)(g)**). PO Matos then told PO Usmani to "shock him again" (**Allegation G: Abuse of Authority, § 87(2)(g)**). PO Matos then allegedly used a chokehold to pull § 87(2)(b) out of his chair (**Allegation H: Force, § 87(2)(g)**). PO Matos then brought § 87(2)(b) to the ground (**Allegation I: Force, § 87(2)(g)**). While on the ground, PO Difrancesca punched § 87(2)(b) leg (**Allegation J: Force, § 87(2)(g)**). PO Usmani then threatened to use his taser on § 87(2)(b) again (**Allegation K: Abuse of Authority, § 87(2)(g)**). PO Matos and PO Usmani allegedly struck § 87(2)(b) with their batons (**Allegations L – M: Force, § 87(2)(g)**). When putting him to a standing position, PO Matos fractured § 87(2)(b) arm by pulling it (**Allegation N: Force, § 87(2)(g)**). While § 87(2)(b) was in handcuffs, PO Difrancesca slapped § 87(2)(b) leg (**Allegation O: Force, § 87(2)(g)**

As officers and EMTs brought § 87(2)(b) to an ambulance, PO Usmani and PO Compton re-entered § 87(2)(b) to retrieve a taser cartridge (**Allegations P – Q: Abuse of Authority, § 87(2)(g)**). EMTs then transported § 87(2)(b) to § 87(2)(b) Medical Center for treatment for his injuries.

§ 87(2)(b) was arrested for assault, resisting arrest, obstruction of governmental administration, and criminal mischief with intent to damage property (**BR 01 – BR 02**).

This case was originally assigned to Investigator Michael Miskovski and was reassigned to Investigator Nick Venduras on December 1, 2023.

The NYPD Legal Department provided 22 Body-Worn Camera (BWC) videos in regard to this incident (**BR 03 – BR 24**). The investigation is not in possession of any additional video.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Joseph Difrancesca entered § 87(2)(b) in Staten Island.

Allegation (B) Abuse of Authority: Police Officer Anis Damak entered § 87(2)(b) in Staten Island.

§ 87(2)(b) said that on August 21, 2023, at approximately 9:30 PM, he was in his residence, located at § 87(2)(b) in Staten Island, where he lives with his mother, § 87(2)(b) and other family members who were home at the time (**BR 25**). This is a multi-family home and other relatives live

on other floors. Around this time, § 87(2)(b) went upstairs to ask his neighbors, § 87(2)(b) and her son § 87(2)(b) to make less noise but they physically attacked him and told him to get out. § 87(2)(b) then went downstairs to his bedroom and left his door open. At approximately 10:45 PM, while sitting in a chair in his bedroom, § 87(2)(b) heard knocking at the door, but did not hear any voices and no one inside his apartment responded. Approximately ten officers then “barged” into § 87(2)(b) home and went to his room and left the door open. § 87(2)(b) did not remember if the apartment door was locked and did not know how the officers entered.

§ 87(2)(b) § 87(2)(b) mother, said that the upstairs neighbors are relatives of the § 87(2)(b) and that she owns the home at § 87(2)(b) with her sister who lives in the upstairs unit (BR 26). § 87(2)(b) is § 87(2)(b) great-niece. After § 87(2)(b) altercation upstairs, § 87(2)(b) called the police, but § 87(2)(b) did not know that until approximately 12 officers arrived about 15 minutes later. She did not know what § 87(2)(b) told the officers, but § 87(2)(b) assumed she told officers § 87(2)(b) hit her. When they arrived, officers knocked on the front door and § 87(2)(b) answered, at which point all officers entered the unit without saying anything. As they came in, § 87(2)(b) stepped back because she did not want to get pushed to the ground, but the officers did not make physical contact with her. The officers did not ask for permission to enter the home, nor did § 87(2)(b) grant permission. Other officers may have entered the home through a separate kitchen entrance, but § 87(2)(b) was unsure. They then went directly to § 87(2)(b) room.

There were two separate 911 calls. An unknown female caller made the first call to request police to § 87(2)(b) in Staten Island because “some guy” assaulted her boyfriend and another female (BR 41). About a minute later, a male voice, who identifies himself as “§ 87(2)(b) provides § 87(2)(b) name as the subject and says he is a Black male in a “wifebeater,” who lives downstairs. This call generated EVENT #§ 87(2)(b) (BR 42). The information in the EVENT Chronology shows this call began at 11:39:02 PM and is consistent with the information provided. This EVENT was cancelled as a duplicate of the second 911 call by § 87(2)(b)

§ 87(2)(b) called 911 and reported that § 87(2)(b) a 50-year-old who smokes “dust,” assaulted her 17-year-old son with a bat (BR 43). This call generated EVENT #§ 87(2)(b) (BR 44). The information in the EVENT Chronology shows § 87(2)(b) placed the 911 call at 11:39:06 PM and is consistent with her 911 call audio.

In the radio message to officers regarding this incident, the dispatcher relays that a 50-year-old Black male in a white tank top assaulted the female caller’s 17-year-old son and is still at the location. (BR 45). The dispatcher says there were two calls regarding this incident.

BWC by PO Matos shows that when the officers arrive on-scene, an ambulance is already there (BR 03). At 1:03, as PO Matos exits his vehicle, § 87(2)(b) says § 87(2)(b) hit her son with a bat or cane. § 87(2)(b) son says he has scratches on his arms, and § 87(2)(b) tells the officers that § 87(2)(b) threw a mirror at her and cut her leg. She then calls § 87(2)(b) a “dust head.” At 1:42, PO Matos asks where § 87(2)(b) is, and § 87(2)(b) points § 87(2)(b) out in the first floor window. PO Matos asks if it is the guy in the “wifebeater,” which § 87(2)(b) confirms. § 87(2)(b) says her son is only 17 and she wants to press charges. At 2:01, PO Matos enters the foyer while an older female holds the door open. The older female then steps further into the home and PO Matos follows behind. At 2:06, PO Matos knocks on the first level apartment door and says “Sir, open up.” The door unlatches and becomes ajar as PO Matos steps back and turns away.

The first of two BWCs by PO Difrancesca shows § 87(2)(b) opening the door to her apartment at 2:06 after PO Matos knocks (BR 04). PO Difrancesca opens the door more and PO Damak, who is behind him, says § 87(2)(b) is in the back room. At 2:09, § 87(2)(b) remains in the doorway while she

turns the lights on, but PO Difrancesca walks into the apartment past her and walks to the back bedroom while officers warn that § 87(2)(b) might try to go out a back door. At 2:16, § 87(2)(b) can be seen sitting in his bedroom in a chair.

BWC by PO Damak shows that as he says § 87(2)(b) is in the back, he puts his hand on PO Difrancesca's back and nudges him forward (BR 08). § 87(2)(b) appears to take one step backwards as the officers enter and PO Damak follows PO Difrancesca into the apartment.

PO Difrancesca said the civilian complainants told the officers that they all lived in one home, not separate units, and that § 87(2)(b) who assaulted them, was on the first floor in the back room (BR 27). These complainants gave officers permission to enter the home by saying they wanted § 87(2)(b) arrested and because the front door was already open. When § 87(2)(b) did not tell PO Difrancesca § 87(2)(b) location, PO Difrancesca asked her to step aside. Other officers followed him, and no one told the officers to stay out. Additionally, this was an emergency situation since § 87(2)(b) was inside, two people were assaulted, one being a minor with injuries, and the door to the house was already open.

PO Damak believed § 87(2)(b) had separate apartments (BR 28). § 87(2)(b) provided permission to enter § 87(2)(b) apartment because she lived there and said she wanted § 87(2)(b) who was inside, arrested. When § 87(2)(b) answered her door, PO Damak could see § 87(2)(b) sitting in his bedroom from his position behind PO Difrancesca. § 87(2)(b) also gave the officers permission to enter the unit when she moved out of their way. No one refused to let officers enter, but PO Damak did not think they needed permission due to the violent nature of the alleged crime in which § 87(2)(b) slashed, cut, and beat § 87(2)(b) and her son.

Payton v. New York, 445 U.S. 573, determined a warrantless entry into a home is presumptively unreasonable and prohibited under the Fourth Amendment (BR 29).

People v. McBride, 14 N.Y.3d 440, determined that exigent circumstances justify a warrantless entry and can be an exception to the *Payton v New York* rule (BR 30). To determine whether such exigent circumstances exist, officers are to consider the gravity or violent nature of the offense with which the suspect is to be charged; whether the suspect is reasonably believed to be armed; a clear showing of probable cause to believe that the suspect committed the crime; a strong reason to believe that the suspect is in the premises being entered; a likelihood that the suspect will escape if not swiftly apprehended; and the peaceful circumstances of the entry.

§ 87(2)(g)

Allegation (C) Force: Police Officer Joseph Difrancesca used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Luis Matos used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Joseph Dimeo used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Luis Matos used a non-lethal restraining device on § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Luis Matos threatened § 87(2)(b) with the use of force.

Allegation (H) Force: Police Officer Luis Matos used a chokehold against § 87(2)(b)

Allegation (I) Force: Police Officer Luis Matos used physical force against § 87(2)(b)

Allegation (J) Force: Police Officer Joseph Difrancesca used physical force against § 87(2)(b)

Allegation (K) Abuse of Authority: Police Officer Rehan Usmani threatened § 87(2)(b) with the use of force.

Allegation (L) Force: Police Officer Luis Matos struck § 87(2)(b) with a baton.

Allegation (M) Force: Police Officer Rehan Usmani struck § 87(2)(b) with a baton.

Allegation (N) Force: Police Officer Luis Matos used physical force against § 87(2)(b)

Allegation (O) Force: Police Officer Joseph Difrancesca used physical force against § 87(2)(b)

§ 87(2)(b) said when officers entered his bedroom, he was sitting in his chair (BR 25). An officer instructed § 87(2)(b) to come with them, but § 87(2)(b) told the officer he had not done anything. An officer, identified by the investigation as PO Matos, tased § 87(2)(b) in his stomach once. Approximately four officers then threw § 87(2)(b) to the floor by pulling him out of the chair by the collar of his shirt. This caused a laceration to his left leg. An officer also put § 87(2)(b) in a headlock. § 87(2)(b) landed on his stomach. Five officers then grabbed § 87(2)(b) right arm and pulled it back and to the left, causing it to break. § 87(2)(b) could not see where the officers were because his face was pressed against the floor, and he did not remember what they said. § 87(2)(b) thought he felt six or seven officers strike his back with their batons about 12 times.

§ 87(2)(b) statement regarding what happened after the officers entered was mostly consistent with § 87(2)(b) with a few exceptions (BR 26). § 87(2)(b) stated that § 87(2)(b) stood up when officers entered his room and that she did not hear the officers give any instructions nor did she see officers use batons. § 87(2)(b) acknowledged that § 87(2)(b) resisted by saying he was not going with the officers, but she did not see § 87(2)(b) tense his arms or try to keep his hands away from them.

§ 87(2)(b) medical records show § 87(2)(b) had a fractured right humerus bone (BR 31 p. 18). § 87(2)(b) told medical staff that his injuries were a result of an altercation with the NYPD and complained of arm pain.

BWC by PO Damak shows that at 2:08, as PO Difrancesca enters § 87(2)(b) bedroom, he says, “Come here, buddy” (BR 08). § 87(2)(b) bedroom is about 9 feet by 11 feet and very cluttered with furniture, a TV, clothes, shoeboxes, etc. There is also a crutch near § 87(2)(b) left arm. At 2:15, PO Difrancesca tells § 87(2)(b) to stand up, but § 87(2)(b) says he is not going anywhere. At 2:20, § 87(2)(b) tells the officers to get away from him. At the same time, PO Matos enters the room with his handcuffs out and says § 87(2)(b) is getting handcuffed right now. At 2:31, PO Matos moves the crutch away from § 87(2)(b). At 2:32, PO Difrancesca takes hold of § 87(2)(b) right wrist, but § 87(2)(b) moves his arms and slaps PO Difrancesca’s hand away.

At 2:32, PO Matos and PO Difrancesca reach for § 87(2)(b) left and right arms, respectively, while § 87(2)(b) tells them to get “the fuck” away from him (BR 08). At 2:35, PO Matos, PO Difrancesca, and PO Damak are in front of the seated § 87(2)(b) and they have a grip on his arms. It appears § 87(2)(b) keeps his arms tense while leaning away from officers and telling them to get “the fuck away” from him. At 2:40, the click of handcuffs is audible, and PO Matos says he has one on. At 2:42, PO Matos sounds as if he says “Taser” or “Tase him.” PO Damak releases his grip at 2:50.

PO Usmani's BWC shows that he enters § 87(2)(b) room at 2:20 and after PO Matos says "Taser" or "Tase him," PO Usmani hands PO Matos his taser at 2:33 (BR 09). At 2:34, the crackle of the taser can be heard as PO Matos brings the taser towards § 87(2)(b) torso area with his right hand. As PO Matos brings the taser away, wires can be seen dangling from PO Usmani's taser. PO Matos hands the taser back to PO Usmani at 2:43. At 2:45, PO Matos says, "Shock him again," twice and PO Usmani disconnects the cartridge. At 2:50, he reaches around PO Matos' torso and points the taser at § 87(2)(b) but at 2:51, PO Matos says not to. At 3:05, PO Matos pulls § 87(2)(b) out of the chair and onto the ground, but his body blocks where he takes hold of § 87(2)(b).

PO Matos' BWC shows that he uses the taser in probe mode once on § 87(2)(b) at 3:03 and cycles through one five-second pulse (BR 03). § 87(2)(b) moves his left arm side to side. After he hands the taser back to PO Usmani, the BWC footage shows that PO Matos has one handcuff on § 87(2)(b) left wrist, but § 87(2)(b) arms are tense, and officers do not fully have control yet. At 3:28, PO Matos' BWC falls off.

At the same time, PO Dimeo's first of two BWCs shows that he follows PO Usmani into the bedroom at 2:42 and places himself between PO Matos and PO DiFrancesca and grabs § 87(2)(b) arms at 2:49 (BR 05). § 87(2)(b) moves around in his chair, his arms are tense against his chest, and he continues to tell officers to get off him. Multiple officers are holding onto his right arm. The taser can be heard at 2:54 and at 3:15, a handcuff is visible on § 87(2)(b) left wrist. At 3:26, PO Matos uses his left hand to pull § 87(2)(b) left wrist forward while he uses his right hand to reach behind § 87(2)(b) neck and pulls § 87(2)(b) to the floor. PO Dimeo appears to crouch down near § 87(2)(b) to gain control of his arms but § 87(2)(b) who is on his back, keeps his arms tense against his chest. At 3:53, PO Usmani twice says he will tase § 87(2)(b) and at 3:56, places his taser against the right side of § 87(2)(b) ribcage, but PO Damak tells him not to and PO Dimeo echoes this. At 4:04, PO Dimeo takes hold of § 87(2)(b) right wrist as there is one handcuff on it and pushes it towards his back. At 4:15, PO Dimeo says he has that arm. At 4:19, PO Matos says, "Stop resisting, sir!"

At 3:56 of PO Usmani's BWC, PO Usmani grabs § 87(2)(b) left arm just before PO Matos says, "Stop resisting, sir!" (BR 09) § 87(2)(b) rolls onto his left side. At 4:04, PO Matos can be seen with his un-extended baton wedged in between § 87(2)(b) right arm and his back, which causes § 87(2)(b) arm to go behind him. With his other hand and the help of PO Usmani, PO Matos pulls § 87(2)(b) curled left arm over his head so that § 87(2)(b) left hand is near his right ear at 4:05. At 4:06, PO Matos removes the asp and PO Dimeo, identified by his black gloves, holds § 87(2)(b) right wrist in place at § 87(2)(b) back. At 4:07, PO Matos flicks his baton into its fully extended position. PO Usmani removes his baton at 4:13. Neither officer strikes § 87(2)(b) with the batons. PO Usmani does not appear to do anything with the baton other than point the end at § 87(2)(b). It is unclear what PO Matos does with his baton. At 4:38, PO Matos handcuffs § 87(2)(b) in a configuration where § 87(2)(b) left elbow is above his left shoulder, but his right elbow is below his right shoulder. At 4:40, PO Matos announces that § 87(2)(b) is "good." At 4:44, PO Usmani removes a baton from under § 87(2)(b) right arm.

Police Officer Edwin Santiago of the 121st Precinct is outside the bedroom when § 87(2)(b) was placed in handcuffs at 2:49 (BR 11). At 3:00, PO Matos stands up from his kneeling position and reaches just below the camera frame to grab § 87(2)(b). At 3:01, as PO Matos pulls upwards in a quick jerking motion, his right hand can be seen grabbing the chain between the cuffs, and his left hand appears to be on § 87(2)(b) left wrist. At 3:02, § 87(2)(b) left arm twists around toward the front of his body and PO Matos appears to lose his grip. § 87(2)(b) then falls down.

At 5:18 of PO Dimeo's BWC, just after PO Matos attempts to pull § 87(2)(b) up, an officer says "Snap" and either that officer or the same officer says something about § 87(2)(b) arm (BR 05). At 5:22, § 87(2)(b) tells officers that they broke his "fuckin' arm."

PO Damak's BWC shows another angle at this point of the interaction while he stands at § 87(2)(b) feet (BR 08). After officers tell PO Usmani not to tase § 87(2)(b) PO DiFrancesca, who is kneeling on the ground to PO Damak's left, uses his right hand to punch § 87(2)(b) right calf at 3:57 while his left arm appears to be trapped between § 87(2)(b) knees, of which one is bloody. § 87(2)(b) maintains the same general position while officers tell him to stop resisting and PO DiFrancesca punches § 87(2)(b) knee again at 4:17. At 4:54, the clicks of handcuffs can be heard, and an officer announces that § 87(2)(b) is "good." At 5:10, after PO Matos tries to stand § 87(2)(b) up but drops him, PO DiFrancesca uses his left hand to hold onto § 87(2)(b) right knee and uses his right hand to audibly slap § 87(2)(b) bare right calf. PO DiFrancesca does not keep his right hand on § 87(2)(b) leg but lets it go.

BWC by other officers present are consistent with the ones described above (BR 04, BR 06 – BR 07, BR 10, BR 12). Throughout these videos, while officers handcuff § 87(2)(b) members of his family tell § 87(2)(b) to stop resisting the officers.

PO DiFrancesca said that when § 87(2)(b) said § 87(2)(b) was a "dust head," he understood that to mean § 87(2)(b) was on PCP, an illegal drug which apparently makes users stronger and more resistant to pain (BR 27). When § 87(2)(b) refused the multiple orders to stand up so they could arrest him, PO DiFrancesca grabbed hold of § 87(2)(b) right arm, likely with both hands, to pull him off the chair. However, § 87(2)(b) tensed his body to remain in his chair and kept moving his hands away from PO DiFrancesca and the other officers trying to grab him, which constituted active resistance. § 87(2)(b) was very aggressive and appeared to be under the influence of PCP based on his remarkable strength and profuse sweating. Because of § 87(2)(b) continued resistance, the officers placed § 87(2)(b) on the floor in a controlled manner and he did not go down very hard. PO DiFrancesca considered this to be a collective effort but was unable to recall the exact movements because of the fluid and high-energy situation.

Once on the ground, PO DiFrancesca held § 87(2)(b) down by holding onto either one or both of § 87(2)(b) legs to stop him from kicking and squirming (BR 27). While he held onto § 87(2)(b) legs, PO DiFrancesca punched his leg twice to gain § 87(2)(b) compliance while PO DiFrancesca and other officers repeatedly told § 87(2)(b) to stop resisting, which he did not do. PO DiFrancesca also acknowledged that one of his arms was trapped between § 87(2)(b) legs and so he punched him a second time. PO DiFrancesca noted the confined space in the room.

Later, when PO DiFrancesca learned that § 87(2)(b) was in handcuffs, he did not use any additional force (BR 27). When shown PO Damak's BWC, PO DiFrancesca denied slapping § 87(2)(b) leg and explained he only grabbed it quickly to stop § 87(2)(b) from kicking since he continued to tense his legs, which PO DiFrancesca considered resistance. When one of the officers tried getting § 87(2)(b) to his feet, § 87(2)(b) used his own force to pull himself down back to the ground, which caused his arm to break.

PO Matos said that he understood the term, "dust head," to mean someone who uses angel dust, a narcotic which is known to give users superhuman strength and considered § 87(2)(b) to have actively resisted arrest by keeping his arms tight against his chest (BR 32). By remaining in his chair, § 87(2)(b) made it more difficult for officers to control him. PO Matos got a handcuff on one of § 87(2)(b) arms, but officers were unable to handcuff the other. With one handcuff on, § 87(2)(b) could have used the pointed part of the handcuff as a weapon, which was a safety concern to PO Matos.

To gain more control, PO Matos used PO Usmani's taser on § 87(2)(b) but it did not work, possibly because the taser was so close to § 87(2)(b) body that the electric spread was too small or one of the wires snapped (BR 32). After handing the taser back to PO Usmani, PO Matos told him to cycle the taser again, but then realized the connection was bad so he told PO Usmani not to and decided to bring § 87(2)(b) to the ground to gain compliance. To get § 87(2)(b) on the ground, PO Matos pulled § 87(2)(b) arm and grabbed § 87(2)(b) right shoulder and back area. PO Matos did not think he made contact with § 87(2)(b) neck, nor did he intend to.

PO Matos made sure to avoid placing § 87(2)(b) on his stomach because that could restrict breathing (BR 32). As § 87(2)(b) continued to resist by tensing his arms, PO Matos did not remember giving any instructions, but PO Usmani said to stop resisting, which PO Matos thought was sufficient. PO Matos still had control of the handcuffed arm and then used his baton to "chicken wing" § 87(2)(b) other arm to gain control, by wedging his baton into § 87(2)(b) arm, but he never struck § 87(2)(b) with it. This maneuver allowed officers to place § 87(2)(b) in handcuffs. PO Matos acknowledged the "non-traditional" way § 87(2)(b) arms were initially positioned in the handcuffs, but officers did this simply to gain control and end the struggle. PO Matos considered this to be the best option at the time and planned on adjusting the handcuffs later. Due to the confined space, PO Matos found it difficult to maneuver and control § 87(2)(b).

When PO Matos attempted to stand § 87(2)(b) up, he grabbed § 87(2)(b) under his arms and pulled up, but § 87(2)(b) threw his weight down at the same time (BR 32). These counterforces caused PO Matos to lose his grip on § 87(2)(b) and § 87(2)(b) left arm twisted in such a way that it snapped above the elbow. As he slipped, PO Matos' hand ended up on the handcuffs, but PO Matos did not intend to hold § 87(2)(b) by the handcuffs, nor did he intend to break § 87(2)(b) arm. PO Matos heard the bone snap and realized § 87(2)(b) arm was broken. At that point, PO Matos removed the handcuffs from the broken arm but held onto § 87(2)(b) other arm to maintain control. Since EMTs were on-scene already, they placed § 87(2)(b) on a medical chair, brought him to the ambulance, and transported him to the hospital.

PO Usmani also thought, "dust head," indicated that § 87(2)(b) may have been under the influence of drugs (BR 33). Officers were already trying to place § 87(2)(b) into custody when PO Usmani first entered the small bedroom. PO Usmani § 87(2)(b) resisted by tensing and flailing his arms and using profane language to say he would not cooperate. § 87(2)(b) was "aggressive," and very strong, which made it difficult for officers to gain control of him.

Due to this resistance, PO Usmani took out his taser but gave it to PO Matos because PO Matos had a better angle and PO Usmani did not want to tase a fellow officer (BR 33). The taser did not appear to be effective because § 87(2)(b) continued resisting. After PO Matos handed the taser back to PO Usmani, PO Usmani removed the cartridge so PO Matos could use it in drive-stun if necessary. After other officers brought § 87(2)(b) to the ground, § 87(2)(b) continued to tense his arms and kept his hands away from officers, which is why PO Usmani removed his taser a second time. He did not intend to use it at the time and said he stated, "If you want to tase him, I'll tase him," rather than saying, "I'll tase him." PO Usmani further explained that he would have been justified in tasing § 87(2)(b) because he was still actively resisting, but did not do so because he did not want to accidentally tase an officer. PO Usmani acknowledged that he removed his baton, but he did not strike § 87(2)(b) with it. Rather, he used his baton as leverage to control § 87(2)(b) free arm by placing the baton between the bent part of the arm to guide it out, which helped get § 87(2)(b) into handcuffs.

PO Usmani never saw an officer put § 87(2)(b) in a headlock or a chokehold or do anything that would restrict his breathing (BR 33). PO Usmani only learned later that § 87(2)(b) arm broke, but did not know how it happened.

PO Damak also believed the term, “dust,” was in reference to a narcotic that makes a person “worse than drunk,” inhuman, incoherent, more tolerant of pain, and gives them “Hulk” strength (BR 28). PO Damak stated that § 87(2)(b) resisted by tensing his arms and planting himself in the chair. Due to the confined space, PO Damak’s safety concerns were raised because people could be hurt if officers used force.

When PO Usmani got his taser ready, PO Damak told him not to tase him because he did not think the taser was necessary since he could see the officers were “seconds away” from handcuffing § 87(2)(b) which they did (BR 28). Once § 87(2)(b) was in handcuffs, PO Matos lifted him, but § 87(2)(b) pulled himself down and his weight caused his arm to break. PO Matos did not grab § 87(2)(b) in any unusual or awkward way, only under the arm like normal.

At no point did an officer place § 87(2)(b) in a chokehold or do anything that would restrict his breathing, nor did § 87(2)(b) ever complain of not being able to breathe and he did not have any neck or throat injuries (BR 28). PO Damak never saw officers strike § 87(2)(b) with their batons.

§ 87(2)(b) was arrested for assault, resisting arrest, obstruction of governmental administration, and criminal mischief with intent to damage property (BR 01 – BR 02). The Threat, Resistance, and Injury Worksheet (TRI) and the Medical Treatment of Prisoner Report (MTPR) are pending and will be added to the casefile upon receipt.

Patrol Guide Procedure 221-01 states that the primary duty of officers is to protect human life, including the lives of individuals being placed in police custody (BR 34). It goes on to say that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. When determining if the use of force is reasonable, officers should consider the nature and severity of the crime/circumstances; actions taken by the subject; the duration of those actions; the immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; the number of subjects in comparison to the number of officers; the subject’s size, age, and condition in comparison to officers; the subject’s violent history, if known; the presence of a hostile crowd or agitators; and if the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

This procedure prohibits officers from sitting, kneeling, or standing on the chest or back of a subject in a manner that compresses the diaphragm, thereby reducing the subject’s ability to breathe; using a chokehold; using any level of force to punish, retaliate, or coerce a subject into making statements; using any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape, or to overcome active physical resistance or assault (BR 34).

Patrol Guide Procedure 221-02 defines active resistance as physically evasive movements to defeat a member of the service’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody (BR 35).

According to Patrol Guide 221-08, a Conducted Electrical Weapon (CEW), or taser, should only be used when a person is actively resisting or exhibiting active aggression, or to prevent that person

from injuring themselves or others (BR 36). A CEW may not be used in situations not requiring the use of physical force.

It is undisputed from BWC footage that § 87(2)(b) did not comply with the officers' instructions to stand up so they could handcuff him. From BWC and officer statements, it is also undisputed that § 87(2)(b) actively resisted by tensing his arms, pushing officers away, and making further statements that he would not go with officers and for officers to get away from him. § 87(2)(g)

§ 87(2)(g)

As BWC further shows, PO Matos used PO Usmani's taser once in probe mode on § 87(2)(b) § 87(2)(g)

BWC also shows that when PO Matos told PO Usmani to "shock" § 87(2)(b) again, § 87(2)(b) was still tensing his arms and refusing to give his hands to the officers. § 87(2)(g)

BWC is consistent with PO Matos' statement that he did not put § 87(2)(b) in a chokehold or headlock. Rather, BWC shows that he pulled § 87(2)(b) out of his chair by pulling on his left arm and gripping § 87(2)(b) by the back of his neck. § 87(2)(g)

When PO Matos pulled § 87(2)(b) out of his chair and placed him on the ground to handcuff him, BWC shows that § 87(2)(b) was still resisting by keeping his arms tense and trying to prevent officers from handcuffing him. § 87(2)(g)

BWC shows that PO Difrancesca punched § 87(2)(b) leg twice. § 87(2)(b) was still resisting by tensing up and not giving his arms to the officers at this point. Moreover, BWC corroborates PO Difrancesca's statement in that § 87(2)(b) locked his arm between his legs. § 87(2)(g)

§ 87(2)(g) BWC shows that § 87(2)(b) was still actively resisting officers by tensing his arms, keeping his hands away from officers, and repeatedly telling them to get away from him. § 87(2)(g)

BWC, which is consistent with both PO Matos' and PO Usmani's statements, shows that no officers struck § 87(2)(b) with their baton. § 87(2)(g)

It is undisputed that § 87(2)(b) broke his arm. § 87(2)(g)

PO Santiago's BWC shows that PO Matos did not grip § 87(2)(b) from under his arms but appeared to be somewhere lower by his forearms. § 87(2)(g)

§ 87(2)(g) Video evidence shows that § 87(2)(b) was already handcuffed and had just been pulled up and dropped down by PO Matos. § 87(2)(g)

Allegation (P) Abuse of Authority: Police Officer Rehan Usmani entered § 87(2)(b) in Staten Island.

Allegation (Q) Abuse of Authority: Police Officer Michael Compton entered § 87(2)(b) in Staten Island.

While not alleged by any civilians, BWC captured PO Usmani and PO Compton re-entering the § 87(2)(b) to retrieve the taser cartridge. PO Usmani's BWC shows that he exits § 87(2)(b) at 8:52 behind § 87(2)(b) officers and EMTs (BR 09). At 8:59, he turns around to the officers exiting behind him and asks about the taser's prongs. He then goes into the street to ask another group of officers where the cartridge is, and PO Matos says it is on a dresser. PO Usmani then re-enters the home at 9:23. He knocks on the door to § 87(2)(b) apartment at 9:28. At 9:32, he opens the door and walks in further. He enters § 87(2)(b) bedroom at 9:39, retrieves the cartridge near the dresser, and exits at 10:15. None of the civilians seen in this portion of the BWC appear to protest this entry.

PO Compton's BWC shows that he follows PO Usmani to get the cartridge from 3:55 until 4:44 when he exits (BR 13).

PO Usmani said he re-entered the home only to retrieve the used cartridge and prongs (BR 33). This re-entry was permissible because the incident was not over, and officers were still on-scene.

The investigation was able to make recommendations for these allegations without taking a statement from PO Compton.

Patrol Guide Procedure 221-08 instructs officers to dispose probes in a “sharps” container and dispose the spent cartridge in the trash (BR 36).

People v. George, 7 A.D.3d 810, states that a second entry by officers is permissible even after the scene is secured and the emergency is over if a continued police presence is maintained, the items seized are in plain view, and the seizure is within several hours of the initial entry (BR 37).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- Police Officer Joseph Difrancesca has been a member of service for two years and has been the subject in one other CCRB complaint and three other allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g)
- Police Officer Anis Damak has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Luis Matos has been a member of service for seven years and has been the subject in three other CCRB complaints and four other allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g)
- Police Officer Joseph Dimeo has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Rehan Usmani has been a member of service for 17 years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Michael Compton has been a member of service for 18 years and has been the subject in three other CCRB complaints and eight other allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming personal and physical injuries; an unlawful seizure; false arrest and imprisonment; malicious prosecution; abuse of process; negligence; intentional and negligent infliction of emotional distress; harassment; unconstitutional conditions of confinement; and to a deprivation of, his constitutional, civil and

common law rights and seeking \$1,000,000.00 as redress (**BR 39**). There is no 50H hearing scheduled.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 16

Investigator:	<u>Nick Venduras</u>	<u>Inv. Nicholas Venduras</u>	<u>Oct 18, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>10/21/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date